

24VECV03807 24VECV03807

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-20

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Tentative Ruling

Menchu v. Jazzve Garden Cafe, Case
no. 24VECV03807

Hearing date July 20, 2026

Defendants'

Motions to Compel Discovery and Deem RFAs Admitted - UNOPPOSED

Plaintiff

Menchu sues defendants Armkar Entertainment, Inc. dba Jazzve Garden Cafe and Ayvazyan for premises liability, alleging injury when concrete fell on his head while performing work at defendants' property. Defendants move to compel responses to discovery and deem RFAs admitted. The motions are unopposed.

"If

a party to whom interrogatories are directed fails to serve a timely response, the following rules apply... (b) The party propounding the interrogatories may move for an order compelling response to the interrogatories." Code Civ. Proc. §2030.290. If a party to whom requests for admission are directed fails to serve a timely response, propounding party may move to deem the matters admitted. Code Civ. Proc. §2033.280(2)(b).

Defendants

served form and special interrogatories, set one, RFPS, set one, and RFAs, set one, on plaintiff on 11/17/25. Decl. Gil, para. 2, exh. A. Plaintiff requested a one-week extension but failed to serve responses by the extended deadline. Id.

at paras. 3-5. Defendants attempted to meet and confer but received no response. Id. at para. 4, exh. C. The motions are unopposed. An order compelling verified, code-compliant responses without objection to form and special interrogatories, set one, and RFPS, set one, and deeming RFAs, set one, admitted is warranted.

Defendants

request sanctions against plaintiff and counsel, joint and several, of \$1,160 per motion at a reasonable hourly rate of \$220/hour. Decl. Gil, para. 7. Defendants request 2 hours for drafting each motion, totaling 4 hours. Id. at para. 6. This is reasonable and granted. Defendants request 2 hours for opposition and reply for each motion, plus 1 hour per motion for hearing. Id. As no opposition nor reply was filed, and the motions will be heard simultaneously, the court awards 1 hour for hearing, a total of 5 hours x \$220/hour = \$1,100 in fees, plus the requested \$60 in filing fees for each motion (\$60 x 2), totaling \$120 in costs. Id. at para. 7.

GRANTED;

plaintiff is ordered to serve verified, code-compliant responses without objection as to form and special interrogatories, set one, and RFPS, set one, within 30 days. Joint and several sanctions of \$1,220, payable within 30 days.